Master Services Agreement

AISymmetric, LLC · AI Advisory & Delivery

Client: [CLIENT COMPANY NAME]
Contact: [FIRST NAME] [LAST NAME], [TITLE]
Service Provider: AISymmetric, LLC, a Minnesota limited liability company
Effective Date: [EFFECTIVE DATE]

1. Purpose

This Agreement sets forth the general terms and conditions under which AISymmetric, LLC ("Service Provider") will provide advisory, technology, and AI-related professional services to [CLIENT COMPANY NAME] ("Client"), as set forth in one or more Statements of Work ("SOWs") governed by this Agreement.

2. Services & Statements of Work

Each SOW shall detail the scope of services, deliverables, timelines, and compensation. SOWs will be incorporated into this Agreement by reference and shall be subject to the terms herein.

3. Term and Termination

This Agreement shall remain in effect until terminated by either party with 30 days' written notice. Either party may terminate immediately for cause in the event of a material breach.

4. Payment Terms

AISymmetric, LLC shall invoice monthly. Invoices are due within fifteen (15) days of receipt. Late payments are subject to a 1.5% monthly interest charge. AISymmetric, LLC reserves the right to suspend services upon ten (10) days' written notice if any invoice remains unpaid past thirty (30) days from due date, without waiving any other remedies.

5. Independent Contractor Relationship

AISymmetric, LLC is an independent contractor and not an employee, partner, or joint venture of [CLIENT COMPANY NAME]. The Service Provider shall be solely responsible for all taxes, insurance, and employment-related obligations.

6. Confidentiality

Both parties agree to maintain the confidentiality of all proprietary and confidential information disclosed during the term of this Agreement. This obligation shall survive termination for three (3)

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years, or indefinitely with respect to trade secrets. Upon termination, each party shall promptly return or certifiably destroy all Confidential Information upon written request.

7. Intellectual Property

Subject to full payment of applicable fees, Client shall own all final deliverables expressly identified as such in an applicable Statement of Work.

Notwithstanding the foregoing, AISymmetric, LLC retains all right, title, and interest in and to:

- **Pre-existing materials, methodologies, frameworks, tools, templates, models, and know-how**
- **All AI models, machine learning models, prompt architectures, automation workflows, and system configurations**
- **Any enhancements or reusable components developed in connection with, but not exclusively for, Client deliverables**

AISymmetric, LLC grants Client a non-exclusive, royalty-free license to use retained materials solely as incorporated into Deliverables for Client's internal business purposes.

8. Indemnification

Each party agrees to indemnify, defend, and hold harmless the other party from any third-party claims arising out of that party's gross negligence, willful misconduct, or material breach of this Agreement.

9. Limitation of Liability

Except for liability arising from breach of confidentiality or indemnification obligations, neither party shall be liable for indirect, incidental, or consequential damages. Total liability shall not exceed fees paid under the relevant SOW in the preceding three (3) months.

10. Non-Solicitation

During the term and for 12 months following termination, each party agrees not to directly solicit or hire employees or contractors of the other party without prior written consent.

11. Governing Law

This Agreement shall be governed by the laws of the State of Minnesota, without regard to its conflict of law principles.

12. Non-Circumvention & Customer Protection

Introductions to AISymmetric, LLC's clients, prospects, partners, or vendors are confidential and proprietary to AISymmetric, LLC. This provision applies only to parties first introduced by AISymmetric, LLC.

13. Dispute Resolution

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The parties agree to attempt good-faith negotiation for thirty (30) days before proceeding to binding arbitration in Hennepin County, Minnesota, under AAA rules. The prevailing party shall recover reasonable attorneys' fees and costs.

14. Force Majeure

Neither party shall be liable for delays caused by events beyond its reasonable control. If a Force Majeure Event continues beyond thirty (30) days, either party may terminate the affected SOW upon written notice.

15. Assignment

Neither party may assign this Agreement without prior written consent. Either party may assign in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee agrees to be bound by this Agreement.

16. Entire Agreement

This Agreement, along with all applicable SOWs, constitutes the entire agreement between the parties. Amendments must be in writing and signed by both parties.

17. Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Service Provider	**Client**
Name: Tyler Perleberg	Name: [FIRST NAME] [LAST NAME]
Title: Founder & CEO	Title: [TITLE]
Company: AISymmetric, LLC	Company: [CLIENT COMPANY NAME]
Signature: _____	Signature: _____
Date: _____	Date: _____

Exhibit A — Non-Disclosure Agreement (NDA)

This Non-Disclosure Agreement is made and entered into as of the Effective Date by and between [CLIENT COMPANY NAME] and AISymmetric, LLC. Each party may act as a Disclosing Party or Receiving Party.

- **Confidential Information:** Includes all non-public business, technical, or financial information disclosed by Disclosing Party to Receiving Party.

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- **Obligations:** Receiving Party agrees to (a) maintain confidentiality, (b) use information solely to fulfill obligations under the MSA, and (c) not disclose without prior written consent.
- **Exclusions:** Information that is publicly known, independently developed, or rightfully received from a third party is excluded.
- **Term:** Obligations survive three (3) years following termination of the MSA, or indefinitely for trade secrets.
- **Return or Destruction:** Upon request or termination, all Confidential Information shall be returned or certifiably destroyed within ten (10) business days.

IN WITNESS WHEREOF, the parties have executed this NDA as of the Effective Date.

Service Provider	**Client**
Name: Tyler Perleberg	Name: [FIRST NAME] [LAST NAME]
Title: Founder & CEO	Title: [TITLE]
Company: AISymmetric, LLC	Company: [CLIENT COMPANY NAME]
Signature: _____	Signature: _____
Date: _____	Date: _____

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